

Case List

AI, Competition Law & Digital Markets

David Lim

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Contents

Canada

Supreme Court of Canada & Federal Court of Appeal

Type key: C = Competition / antitrust challenge D = Data / privacy / regulatory C+D = Both

Case	Citation / Year	Description	Type
<i>Canada (Commissioner of Competition) v. Superior Propane Inc.</i>	[2003] FCA	Merger; efficiency defence applied	C
<i>Tele-Direct (Publications) Inc. v. American Business Information Inc.</i>	[1997] FCA	Data-based market power defined	C+D
<i>Canada Pipe Co. v. Commissioner of Competition</i>	2006 FCA 233	Loyalty rebates; anti-competitive effects	C

Competition Tribunal — Digital / Data / AI-Adjacent Cases

Case	Citation / Year	Description	Type
<i>Commissioner of Competition v. Toronto Real Estate Board (TREB)</i>	2017 FCA 236; CT 2016	Data access; digital market abuse	C+D
<i>Commissioner of Competition v. Rogers Communications / Shaw Communications</i>	CT-2022-002 (2022–2023)	Telecom merger; digital infrastructure	C
<i>Commissioner of Competition v. The Exchange</i>	CT-2021	Payment networks; two-sided markets	C
<i>Commissioner of Competition v. Visa Inc. & Mastercard International Inc.</i>	CT-2010-010	Payment platform; network effects	C
<i>Commissioner of Competition v. Facebook / Meta (Consent Agreement)</i>	2020	Social media; data privacy overlap	C+D

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Case	Citation / Year	Description	Type
<i>Commissioner of Competition v. Google LLC</i> (advertising investigation)	Ongoing (filed 2023)	Search ads; digital dominance challenged	C+D
<i>Commissioner of Competition v. Live Nation / Ticketmaster</i>	Filed 2024	Ticketing platform; digital monopoly	C+D
<i>Commissioner of Competition v. Cineplex Inc.</i>	CT-2023-003	Drip pricing; online deceptive practices	C+D
<i>Commissioner of Competition v. Amazon.com</i>	Ongoing (2024)	Marketplace listings; algorithmic pricing	C+D
<i>Commissioner of Competition v. OpenText / Micro Focus</i>	2023	AI-software merger; data-driven enterprise	C+D
<i>NuComm International Inc. v. Bell Canada</i>	2003 FCA	Essential facility; access denied	C
<i>Commissioner of Competition v. Secure Energy</i>	CT-2022	Oilfield services digital merger	C

Key note: The *TREB* case (2017) is the single most important Canadian case for this thesis — it is the first Canadian competition case where control of a data platform (MLS listings) was found to be an anti-competitive abuse of dominance, directly analogous to issues arising with AI data ecosystems.

European Union

European Commission Decisions (Article 101/102 TFEU)

Case	Citation / Year	Description	Type
<i>Google Search (Shopping)</i>	Case AT.39740 (2017)	Search self-preferencing; billion-euro fine	C+D

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Case	Citation / Year	Description	Type
<i>Google Android</i>	Case AT.40099 (2018)	Mobile OS; bundling exclusion	C+D
<i>Google AdSense</i>	Case AT.40411 (2019)	Search ads; exclusivity clauses	C+D
<i>Facebook / WhatsApp Merger</i>	Case M.7217 (2014)	Merger; data combination not assessed	C+D
<i>Amazon Marketplace</i>	Case AT.40462 (2022, settled)	Seller data; platform self-preferencing	C+D
<i>Amazon Buy Box</i>	Case AT.40703 (2022, settled)	Algorithmic ranking; buy-box bias	C+D
<i>Apple – App Store</i> (Music Streaming / Spotify)	Case AT.40437 (2024)	App Store; Spotify anti-steering fine	C+D
<i>Apple – App Store</i> (e-Books / Reading apps)	Case AT.40437 (2022)	In-app purchase restrictions challenged	C+D
<i>Apple – iCloud/Safari</i> (DMA proceedings)	DMA proceedings (2024)	Browser/cloud default; gatekeeper obligations	C+D
<i>Meta – Interoperability</i> (Facebook Marketplace)	Case AT.40684 (2024)	Facebook ads; classified ads tying	C+D
<i>Microsoft / LinkedIn</i>	Case M.8124 (2016)	Data merger; behavioral remedies imposed	C+D
<i>Microsoft / Activision Blizzard</i>	Case M.10996 (2023, cleared with remedies)	Cloud gaming; vertical foreclosure concern	C+D
<i>Broadcom</i>	Case AT.40569 (2020, interim measures)	Chip firm; first interim AI-adjacent	C+D
<i>Qualcomm</i> (exclusivity)	Case AT.40220 (2018)	Chip exclusivity; Apple payments	C
<i>Qualcomm</i> (predatory pricing)	Case AT.39711 (2019)	Chipset pricing; predatory conduct	C
<i>Intel</i>	Case AT.37990; C-413/14 P (ECJ 2017)	Rebates; effects-based abuse review	C

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Case	Citation / Year	Description	Type
<i>Alphabet / Google – AdTech</i>	Case AT.40670 (Ongoing)	Ad tech stack; self-preferencing	C+D
<i>Bundeskartellamt v. Facebook</i> (Germany FCO)	B6-22/16 (2019); upheld by BGH 2021	Data harvesting; privacy as abuse	C+D
<i>TikTok</i> (DMA / DSA)	DMA proceedings (2024)	Minor protection; platform gatekeeper	D
<i>Microsoft / OpenAI</i> (EU Commission Review)	Article 22 / DMA review (2024)	AI partnership; merger evasion scrutiny	C+D

Court of Justice of the EU (CJEU)

Case	Citation / Year	Description	Type
<i>Google Spain SL v. AEPD</i>	C-131/12 (2014)	Right to be forgotten online	D
<i>Schrems II</i>	C-311/18 (2020)	Data transfers; privacy-competition nexus	D
<i>Meta Platforms v.</i> <i>Bundeskartellamt</i>	C-252/21 (2023)	GDPR breach confirms market dominance	C+D
<i>Intel Corp. v. Commission</i>	C-413/14 P (2017)	Effects test; abuse of dominance	C
<i>Streetmap EU v. Google</i>	High Court UK (2016)	Search self-preferencing; early digital	C+D
<i>Commission v. Google</i> (Shopping appeal)	Case T-612/17 (GC 2021); on appeal	Self-preferencing upheld at GC	C+D

United States

Department of Justice (DOJ) Cases

Case	Citation / Year	Description	Type
<i>United States v. Google LLC</i> (Search)	1:20-cv-03010 (D.D.C. 2024)	Search monopoly; default agreements illegal	C+D
<i>United States v. Google LLC</i> (Ad Tech)	1:23-cv-00108 (E.D. Va. 2025)	Ad tech stack; monopoly found	C+D
<i>United States v. Apple Inc.</i>	2:24-cv-04055 (D.N.J. filed 2024)	Smartphone monopoly; ecosystem exclusion	C+D
<i>United States v. RealPage Inc.</i>	1:24-cv-00710 (M.D.N.C. 2024)	Algorithmic rent pricing; collusion	C+D
<i>United States v. Live Nation Entertainment</i>	Filed 2024	Ticketing monopoly; platform foreclosure	C
<i>United States v. Microsoft Corp.</i>	97 Civ. 2487 (D.D.C. 2001)	Browser war; platform tying landmark	C

Federal Trade Commission (FTC) Cases

Case	Citation / Year	Description	Type
<i>FTC v. Meta Platforms (Facebook)</i>	1:20-cv-03590 (D.D.C. ongoing)	Instagram/WhatsApp; killer acquisitions challenged	C+D
<i>FTC v. Qualcomm Inc.</i>	5:17-cv-00220 (N.D. Cal. 2019)	No-license-no-chips; FRAND abuse	C
<i>FTC v. Microsoft / Activision Blizzard</i>	9:23-cv-02880 (2023, FTC lost)	Cloud gaming; vertical foreclosure	C+D
<i>FTC v. Amazon.com</i>	2:23-cv-01461 (W.D. Wash. 2023)	Dark patterns; marketplace dominance	C+D
<i>In re: Amazon Marketplace</i> (FTC investigation)	Ongoing (2023–)	Seller data; self-preferencing probe	C+D
<i>FTC v. Facebook</i> (Cambridge Analytica — consent order)	2019 consent order	Data misuse; platform accountability	D
<i>FTC v. OpenAI</i> (generative AI investigation)	Opened 2023	Consumer protection; ChatGPT data	D
<i>In re Nvidia / Arm Holdings</i>	FTC challenged; abandoned 2022	AI chips; supply-chain dominance	C+D

US Supreme Court — Foundational / Relevant Precedent

Case	Citation / Year	Description	Type
<i>United States v. Microsoft Corp.</i>	253 F.3d 34 (D.C. Cir. 2001)	Platform tying; digital monopolization	C
<i>Ohio v. American Express Co.</i>	585 U.S. 529 (2018)	Two-sided markets; antitrust framework	C
<i>FTC v. Meta Platforms Inc.</i> (motion to dismiss)	560 F. Supp. 3d 1 (D.D.C. 2021)	Market definition; social media	C+D
<i>Spectrum Sports v. McQuillan</i>	506 U.S. 447 (1993)	Monopolization; attempt standard	C
<i>Verizon Communications v. Law Offices of Curtis Trinko</i>	540 U.S. 398 (2004)	Refusal to deal; essential facilities	C
<i>Brooke Group Ltd. v. Brown & Williamson Tobacco</i>	509 U.S. 209 (1993)	Predatory pricing; cost-recoupment test	C
<i>Aspen Skiing Co. v. Aspen Highlands Skiing Corp.</i>	472 U.S. 585 (1985)	Refusal to deal; monopoly power	C

Cross-Jurisdictional / Noteworthy Regulatory Proceedings

Proceeding	Jurisdiction / Year	Description	Type
<i>CMA v. Meta / Giphy</i>	UK, 2022 (forced divestiture)	AI-content acquisition; unwound divestiture	C+D
<i>CMA AI Foundation Models Market Study</i>	UK, 2023–2024	Foundation models; structural competition risk	C+D
<i>CMA Microsoft / OpenAI Review</i>	UK, 2024	AI partnership; minority investment reviewed	C+D
<i>ACCC v. Google</i> (Location Data)	Australia, 2021	User consent; location data deception	D
<i>ACCC Digital Platforms Inquiry</i>	Australia, 2019	Platforms report; competition framework	C+D

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Proceeding	Jurisdiction / Year	Description	Type
<i>Booking.com</i> (EU/national NCAs)	Multiple NCAs, 2015–2019	MFN clauses; parity pricing illegal	C
<i>Commission v. Intel</i> (rebates)	ECJ C-413/14P (2017)	Effects-based test; rebate abuse	C

Quick Reference: Most Important Cases for Thesis

For the specific angle of AI + competition law in Canada with EU/US comparison, the five most essential cases are:

1. ***TREB (Canada, 2017)*** — Data access as a competition law issue; the closest Canadian precedent to AI data dominance.
2. ***United States v. Google LLC (Search, 2024)*** — First modern ruling that an AI-adjacent platform illegally maintained a search monopoly.
3. ***Bundeskartellamt v. Facebook / Meta v. Bundeskartellamt (CJEU C-252/21, 2023)*** — Landmark data-as-dominance case; privacy breach confirms market power.
4. ***Google Shopping (EU, AT.39740, 2017)*** — Algorithmic self-preferencing as abuse of dominance; foundational EU digital case.
5. ***DOJ v. RealPage (2024)*** — First major US enforcement action explicitly targeting AI-driven algorithmic pricing as collusion.